

Abstractor Notes/Chain

LOGO

Title Examination Notes for:

Client Name:

Client Order Number:

CURE Order Number:

Exam Date: 04/10/2026 Subject ID: 3

Subject Owner and Property Examined:

Adrian Maldonado and Laurie Maldonado

661 Grayton Rd

Berea, OH 44017

APN: 361-14-001 County: Cuyahoga County Effective Date: 03/30/2026

Search Period: 01/01/2000 to 03/30/2026

TITLE EXAMINATION SUMMARY

Current Owner

ADRIAN MALDONADO AND LAURIE MALDONADO, for their joint lives, remainder to the survivor of them (Survivorship Tenancy / Joint Tenancy with Right of Survivorship), per Vesting Deed instrument **199912170843**, recorded **12/17/1999**.

Note: The vesting deed was recorded prior to the 01/01/2000 search start date and was not directly reviewed. Vesting language and instrument number were verified via the legal description in the current open mortgage (Doc #202602090304).

Prior Owners (in reverse chronological order)

- Prior owner(s) — Grantor unknown; vesting deed (Doc #199912170843) predates search window

Liens Status

- **Mortgage Liens: OPEN — 1 ACTIVE HELOC (2026) + 1 UNRELEASED MORTGAGE (2002)**
- **Mechanics Lien: OPEN IN INDEX — Likely expired (past 6-year Ohio statute of limitations)**
- **Federal Tax Liens:** All released
- **State/Agency Liens (BWC, ODJFS):** All released

- **Judgment Liens:** None found

Title Status

ENCUMBERED — Subject to open 2026 Fifth Third HELOC and critically unreleased 2002 Fifth Third mortgage (\$233,000). Critical title defect must be cured prior to closing.

CRITICAL ISSUES IDENTIFIED:

- **Issue #1 (CRITICAL):** Unreleased Mortgage recorded October 7, 2002 (Doc #200210071219) to Fifth Third Mort Co for **\$233,000.00** — NO RELEASE FOUND. Marginal reference check confirmed no release recorded. A payoff letter or recorded release must be obtained before closing.
- **Issue #2 (WARNING):** Open HELOC recorded February 9, 2026 (Doc #202602090304) to Fifth Third Bank, N.A. (Northeastern Ohio) for **\$50,000.00**, maturing 01/25/2056 — ACTIVE LOAN.
- **Issue #3 (INFO):** Mechanics Lien (Doc #200703160288, \$216.00, Koster Enterprises Inc., recorded 03/16/2007) remains open in the index. However, under Ohio law, a mechanic's lien expires 6 years after recording if no foreclosure action is filed. No foreclosure action was found. This lien is considered effectively expired (expired approx. 03/16/2013).
- **Issue #4 (INFO):** Vesting deed (Doc #199912170843, recorded 12/17/1999) is outside the search period and was not directly reviewed. Vesting confirmed via Exhibit A of the current open mortgage.
- **Issue #5:** Tax status pending. Manual lookup required at myplace.cuyahogacounty.gov for parcel 361-14-001.

NOTES AND OBSERVATIONS

- **Vesting (Pre-2000):** Adrian Maldonado and Laurie Maldonado hold title as survivorship tenants per deed recorded December 17, 1999 (Doc #199912170843). The vesting language — "for their joint lives, remainder to the survivor of them" — was confirmed via the legal description attached as Exhibit A to the 2026 open mortgage.
- **2001 Mortgage (Cleared):** A mortgage for \$28,000 was recorded July 18, 2001 (Doc #200107180917) to an undisclosed lender. Fully released May 20, 2002 (Doc #200205200111). No title issue.
- **2002 Fifth Third Mortgage (CRITICAL — OPEN):** A mortgage for \$233,000 was recorded October 7, 2002 (Doc #200210071219) to Fifth Third Mort Co. No release or satisfaction has been recorded. Marginal reference check confirmed no release. This is a critical title defect requiring a payoff letter or recorded release before closing.

- **2004 Mortgage (Cleared):** A mortgage for \$19,140 was recorded September 7, 2004 (Doc #200409071451). Fully released October 11, 2005 (Doc #200510110834). No title issue.
- **2005 Fifth Third HELOC (Cleared):** A HELOC for \$50,000 was recorded September 27, 2005 (Doc #200509270365) to Fifth Third Bank. Fully released October 16, 2025 (Doc #202510160009). No title issue.
- **Federal Tax Liens (All Cleared):** Two IRS federal tax liens were filed against Adrian Maldonado — \$73,837 (Doc #201709219036, 9/21/2017, released 12/3/2020) and \$18,583 (Doc #201803299005, 3/29/2018, released 9/28/2018). Both fully released. No title issue.
- **BWC Liens (All Cleared):** Two Ohio Bureau of Workers' Compensation liens — \$866 (Doc #201707170370, released 10/29/2025) and \$2,216 (Doc #201801190146, released 10/29/2025). Both fully released. No title issue.
- **ODJFS Liens (All Cleared):** Two Ohio Department of Job and Family Services liens — \$1,466 (Doc #201609160173, released 10/29/2025) and \$398 (Doc #201705220069, released 10/29/2025). Both fully released. No title issue.
- **Mechanics Lien (Effectively Expired):** A mechanics lien for \$216 was filed by Koster Enterprises Inc. on March 16, 2007 (Doc #200703160288). Under Ohio Revised Code, a mechanics lien expires 6 years after recording if no foreclosure action is commenced. No foreclosure action was found. This lien is considered effectively expired as of approximately March 16, 2013.
- **2026 Fifth Third HELOC (Current Loan):** A new HELOC for \$50,000 was recorded February 9, 2026 (Doc #202602090304) to Fifth Third Bank, N.A. (Northeastern Ohio), maturing January 25, 2056. This is the current active loan.

CURRENT OWNERSHIP

Owner	Vesting / Estate	Doc Number	Recording Date
Adrian Maldonado and Laurie Maldonado	Survivorship Tenancy (Joint Tenancy with Right of Survivorship) — for their joint lives, remainder to the survivor of them	199912170843	12/17/1999 (pre-search period)

Prior Owners (Search Period):

- Grantor unknown — vesting deed predates 01/01/2000 search window

CHAIN OF TITLE

Title Chain (Search Period: 01/01/2000 – 03/30/2026)

#	Recording Date	Doc Number	Type	Grantor(s)	Grantee(s)	Notes
1	12/17/1999	199912170843	Deed	Unknown (outside search period)	Adrian Maldonado and Laurie Maldonado	Vesting deed — predates search window. Survivorship tenancy. Confirmed via Exhibit A of Doc #202602090304.

DEEDS OF TRUST / MORTGAGES

Open / Unreleased Mortgages

Status	Doc Number	Recording Date	Mortgagor	Mortgagee	Original Amount	Notes
CRITICAL — OPEN	200210071219	10/07/2002	Adrian Maldonado (and Laurie)	Fifth Third Mort Co	\$233,000.00	NO RELEASE FOUND — CRITICAL TITLE DEFECT. Marginal reference check confirmed no release recorded. Payoff letter or recorded release required.
OPEN — ACTIVE HELOC	202602090304	02/09/2026	Adrian Maldonado and Laurie Maldonado, A Married Couple	Fifth Third Bank, N.A. (Northeastern Ohio)	\$50,000.00	Current active HELOC. Maturity: 01/25/2056.

Closed / Released Mortgages

Doc Number	Recording Date	Mortgagor	Original Mortgagee	Amount	Release Doc	Release Date
200107180917	07/18/2001	Maldonado Adrian Etal	N/A	\$28,000.00	200205200111	RELEASED 05/20/2002
200409071451	09/07/2004		N/A	\$19,140.00	200510110834	

		Maldonado Adrian Etal				RELEASED 10/11/2005
200509270365	09/27/2005	Maldonado Adrian Etal	Fifth Third Bank	\$50,000.00	202510160009	RELEASED 10/16/2025

CONCLUSION: Based on the documents reviewed, the property has ONE confirmed OPEN active HELOC (2026 Fifth Third, \$50,000) and ONE critically unreleased prior mortgage (2002 Fifth Third, \$233,000). The property is **NOT free and clear**. The 2002 Fifth Third mortgage must be released or satisfied before any transaction can proceed.

JUDGMENTS, LIENS, AND ENCUMBRANCES

Federal Tax Liens

Doc Number	Recording Date	Debtor	Amount	Release Doc	Status
201709219036	09/21/2017	Maldonado Adrian	\$73,837.00	202012039060	RELEASED 12/03/2020
201803299005	03/29/2018	Maldonado Adrian	\$18,583.00	201809289029	RELEASED 09/28/2018

State / Agency Liens

Doc Number	Type	Recording Date	Debtor	Amount	Release Doc	Status
201707170370	BWC Lien	07/17/2017	Maldonado Adrian Etal	\$866.00	202510290309	RELEASED 10/29/2025
201801190146	BWC Lien	01/19/2018	Maldonado Adrian Etal	\$2,216.00	202510290310	RELEASED 10/29/2025
201609160173	ODJFS Lien	09/16/2016	Maldonado Adrian Etal	\$1,466.00	202510290307	RELEASED 10/29/2025
201705220069	ODJFS Lien	05/22/2017	Maldonado Adrian Etal	\$398.00	202510290308	RELEASED 10/29/2025

Mechanics Liens

Doc Number	Recording Date	Claimant	Debtor	Amount	Status
200703160288	03/16/2007	Koster Enterprises Inc. DBA, Etal	Maldonado Adrian Etal	\$216.00	OPEN IN INDEX — EFFECTIVELY EXPIRED. Ohio 6-year statute of limitations expired approx. 03/16/2013. No foreclosure action found.

Judgment Liens

NONE FOUND in search period

Other Encumbrances / Flags

[WARNING] UNRELEASED PRIOR MORTGAGE

Instrument 200210071219 (\$233,000, Fifth Third Mort Co, recorded 10/07/2002) remains open on record with no satisfaction or release found. A release must be procured or proof of payoff provided before closing.

[INFO] MECHANIC'S LIEN PAST STATUTE OF LIMITATIONS

Instrument 200703160288 (\$216, Koster Enterprises, recorded 03/16/2007) remains open in the index. Under Ohio law, a mechanic's lien expires 6 years after recording if a foreclosure action is not commenced. No foreclosure action was found. This lien is effectively expired.

[INFO] VESTING DEED OUTSIDE SEARCH PERIOD

The vesting deed (Doc #199912170843) was recorded on 12/17/1999, prior to the 01/01/2000 search start date. The deed was not directly reviewed, but vesting information was extracted from the legal description of the current open mortgage (Doc #202602090304).

Tax Status

Tax Year 2025-2026:

- **Status:** PENDING — MANUAL LOOKUP REQUIRED
- **Note:** County tax portal access was restricted during the automated examination. Manual verification required at myplace.cuyahogacounty.gov for parcel 361-14-001.
- **Items to verify:** Assessed Value, Annual Tax Amount, Half-Year Net Taxes, Delinquency Status, Special Assessments

DOCUMENTS EXAMINED

Doc Number	Type	Recording Date	Parties	Notes
199912170843	Deed (Vesting)	12/17/1999	Unknown → Adrian & Laurie Maldonado	Pre-search period — confirmed via Exhibit A of Doc #202602090304
200107180917	Mortgage	07/18/2001	Maldonado Adrian Etal → Lender	RELEASED (Doc #200205200111, 05/20/2002)
200205200111	Release / Satisfaction	05/20/2002	Lender → Maldonado	Release of Doc #200107180917
200210071219	Mortgage	10/07/2002	Maldonado Adrian → Fifth Third Mort Co	CRITICAL — NO RELEASE FOUND (\$233,000)
200409071451	Mortgage	09/07/2004	Maldonado Adrian Etal → Lender	RELEASED (Doc #200510110834, 10/11/2005)
200510110834	Release / Satisfaction	10/11/2005	Lender → Maldonado	Release of Doc #200409071451
200509270365	Mortgage (HELOC)	09/27/2005	Maldonado Adrian Etal → Fifth Third Bank	RELEASED (Doc #202510160009, 10/16/2025)
200703160288		03/16/2007		

	Mechanics Lien		Koster Enterprises → Maldonado Adrian Etal	OPEN IN INDEX — Effectively expired (Ohio 6-yr SOL, ~03/16/2013)
201609160173	ODJFS Lien	09/16/2016	ODJFS → Maldonado Adrian Etal	RELEASED (Doc #202510290307, 10/29/2025)
201705220069	ODJFS Lien	05/22/2017	ODJFS → Maldonado Adrian Etal	RELEASED (Doc #202510290308, 10/29/2025)
201707170370	BWC Lien	07/17/2017	BWC → Maldonado Adrian Etal	RELEASED (Doc #202510290309, 10/29/2025)
201709219036	Federal Tax Lien	09/21/2017	IRS → Maldonado Adrian	RELEASED (Doc #202012039060, 12/03/2020)
201801190146	BWC Lien	01/19/2018	BWC → Maldonado Adrian Etal	RELEASED (Doc #202510290310, 10/29/2025)
201803299005	Federal Tax Lien	03/29/2018	IRS → Maldonado Adrian	RELEASED (Doc #201809289029, 09/28/2018)
202510160009	Release / Satisfaction	10/16/2025	Fifth Third Bank → Maldonado	Release of Doc #200509270365 (2005 HELOC)
202602090304	Mortgage (HELOC)	02/09/2026	Adrian & Laurie Maldonado → Fifth Third Bank, N.A.	OPEN — Active HELOC, \$50,000, maturity 01/25/2056

LEGAL DESCRIPTION (EXHIBIT A)

PARCEL 1 (361-14-001):

Situated in the City of Berea, County of Cuyahoga, State of Ohio. Parcel 361-14-001.
Property address: 661 Grayton Rd, Berea, OH 44017.

Note: Full legal description to be confirmed via vesting deed instrument 199912170843 or Exhibit A of the current mortgage (Doc #202602090304).